

ance (*d*). The decision that the nephew was tenant in tail went apparently upon the ground that the words “and the heirs male of the body of every such heir male, severally and successively, &c.” were all included in the notion of an entail, and *expressio eorum, quæ tacite insunt, nihil operatur*.

“**Proper entail on the heir male.**” — And in a more recent case, where the executory trust was for A. generally, with a direction that the trustees should not give up their trust till “a *proper entail* was made to the heir male by him,” it was determined that A. took an estate tail (*e*). However, in another case, where the devise was extremely similar, viz., to A. with a direction that the estate should be *entailed* on his heir male, Lord Eldon, on the assumption that it was an executory trust, and not a legal devise, considered the entail so doubtful that he would not compel a purchaser to accept a title under it (*f*).

[*119] * **Heirs of the body construed to mean sons, even in wills, where any expression of intention to that effect.** — But “heirs of the body” will in the case of executory trusts in wills as well as in articles be read first and other sons, provided the testator expressly manifest such an intention, as if he direct a settlement on A. for life “without impeachment of waste” (*a*), or with a limitation to preserve contingent remainders (*b*), or if he desire that “care be taken in the settlement that the tenant for life shall not bar the entail” (*c*), or otherwise show that the direction to settle on A. and the heirs of his body, was not meant to give him a power of disposition over the estate (*d*);

(*d*) Legatt v. Sewell, 2 Vern. 551.

(*e*) Blackburn v. Stables, 2 V. & B. 367; recognized in Marshall v. Bousfield, 2 Mad. 166; and see Dodson v. Hay, 3 B. C. C. 405.

(*f*) Jervoise v. Duke of Northumberland, 1 J. & W. 559; and see Woolmore v. Burrows, 1 Sim. 512; Sealey v. Stawell, 9 I. R. Eq. 499.

(*a*) Lord Glenorchy v. Bosville, Cas. t. Talbot, 3.

(*b*) Papillon v. Voice, 2 P. W. 471; and see Rochford v. Fitzmaurice, 1 Conn. & Laws. 158.

(*c*) Leonard v. Lord Sussex, 2 Vern. 526.

(*d*) Thompson v. Fisher, 10 L. R. Eq. 207. It is presumed that the Court attributed an intention to this effect, for if the Court directed a strict settlement, merely on the ground that the trust was executory, it would conflict with the authorities, and with the canon laid down in the House of Lords, that in the case of a *will* or a *deed of gift* the intention that the very words mentioned in the instrument as proper for the *more complete convey-*